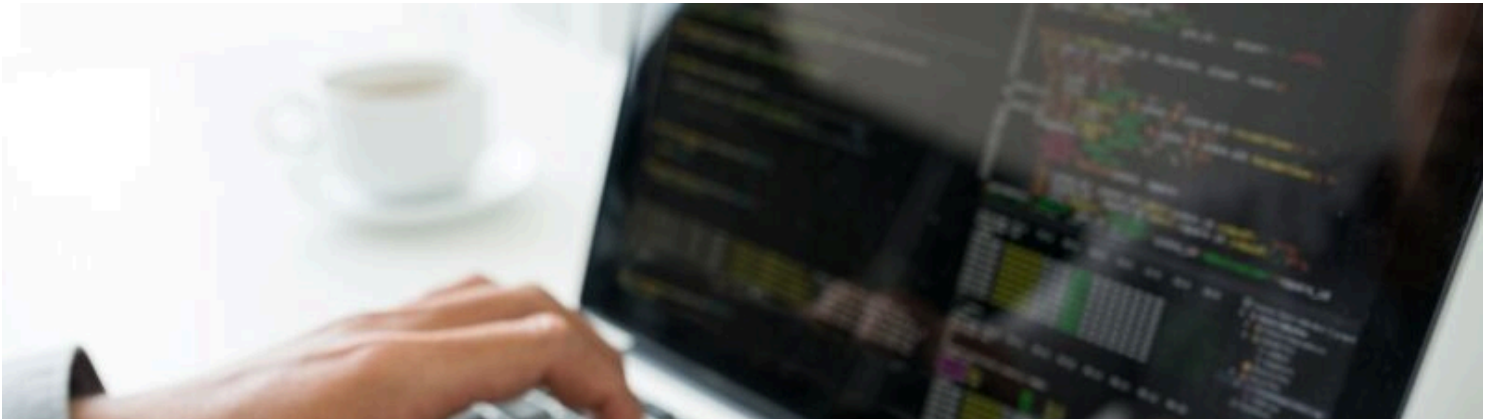




AI & FUTURE TECHNOLOGIES

The AI Law Professor: When AI quietly hijacks legal judgment

Tom Martin Author & Professor

8 Apr 2026 · 7 minute read

Everyone knows the blank page as an obstacle. Yet, AI has seemingly eliminated it, delivering structured, coherent, surprisingly competent drafts in seconds. For lawyers, however, the blank page was where the most important thinking happened, and the tool designed to help you think may be quietly doing the thinking for you instead

Key takeaways:

- **Anchoring distorts judgment before you begin** — Research shows a first draft shapes subsequent decisions; and an AI draft is the most seductive anchor imaginable, because it looks exactly like something a lawyer would write.

- ***The First Draft Trap inverts legal training*** — The Socratic method builds the habit of holding multiple possibilities in tension before committing; but an AI first draft collapses that space before the real thinking begins.
- ***The fix is to ask for the map, not the draft*** — Requesting multiple strategic framings *before* writing keeps judgment where it belongs and uses AI to expand possibilities rather than foreclose them.

Welcome back to [The AI Law Professor](#). Last month, I examined why [promised efficiency gains often become a cycle of work intensification](#). This month, I want to address a subtler challenge. I call it the First Draft Trap and understanding it may change how you reach for AI the next time a new matter lands on your desk

We have all heard the pitch: Staring at a blank page? Just prompt the AI. In seconds you have a working draft: structured, coherent, and surprisingly competent. The blank page problem, that ancient enemy of productivity, thus has been vanquished.

Except the blank page itself was never just an obstacle; rather, it was a space of possibility. For lawyers, it was the space in which the most important part of their work actually happens. Now, with AI in the mix, that may be changing.

Welcome to the *First Draft Trap*.

Simply put, the First Draft Trap is this: The moment you accept an AI-generated draft as your starting point, you have already made the most consequential decision of the entire project — most importantly, you made it by not making it. You let the machine choose your direction, your framing, and your theory. Everything that follows is *editing*; and editing, no matter how rigorous, is not the same as thinking.

The cognitive hijack

There is solid psychology behind why this happens. Daniel Kahneman and Amos Tversky demonstrated in their landmark 1974 paper, [Judgment under Uncertainty: Heuristics and Biases](#), that once people are exposed to an idea, this first impression distorts their subsequent judgments and becomes a mental anchor. In their experiments, subjects who watched a roulette wheel spin to a random number still let that number influence their estimates of completely unrelated quantities. The anchor held even when people knew it was meaningless.

Please join Tom Martin at the [LawDroid AI Conference 2026](#) on April 28–29. It's virtual and completely free — two days of keynotes, panels, and workshops on AI and the legal profession

An AI first draft is the most seductive anchor imaginable. It is not random — it is plausible, and it is well-organized. It sounds like something a lawyer *would* write. And that is precisely what makes it dangerous. You know intellectually that it is just one of many possible approaches to addressing the matter, but the anchor holds anyway.

That is the First Draft Trap at the cognitive level. The AI draft is not just one option you happen to prefer. It is a filter that prevents you from seeing the other options that were available to you, the roads you never even noticed that you did not take.

Consider what this means for a profession built on the opposite instinct. From the first day of law school, **lawyers are trained to resist the obvious answer** and to *think like a lawyer*. The Socratic method exists for exactly this reason. A good professor hears your confident response and asks: *What else? What if the facts were different? What is the argument on the other side?* The goal is not to arrive at an answer, per se. It is to build the mental habit of holding multiple possibilities in tension before committing to any one of them.

The First Draft Trap is the *anti-Socratic* method. It delivers a confident answer before you have even formulated the question properly — and instead of interrogating it, you polish it.

The value of the blank page

Think about what a senior partner actually does when a junior associate brings them a memo. The partner's value is not better writing; rather, it is peripheral vision: The ability to see what the memo *does not* address, the argument not considered, or the framing that would land differently with this particular judge or this particular jury. That capacity to see beyond the document in front of them is why clients pay senior partners premium rates. And it is precisely the muscle that atrophies when your default workflow begins with the prompt *generate a draft*.

The AI draft is not just one option you happen to prefer. It is a filter that prevents you from seeing the other options that were available to you, the roads you never even noticed that you did not take.

The two-system framework offered by Kahneman and Tversky gives us a clean way to describe what is going wrong. System 1 is fast, intuitive, and pattern-matching; while System 2 is slow, deliberate, and analytical. The practice of law, at its best, is a System 2 discipline. We, as lawyers, are trained to override gut reactions, challenge assumptions, and think through consequences before acting.

In this way, the AI first draft feels like a System 2 output. It is structured, footnoted, and methodical. However, your decision to accept it as a starting point is pure System 1 — a fast, intuitive grab at the nearest plausible answer. You have used a sophisticated tool to bypass the sophisticated *thinking* the tool was supposed to support. That uncomfortable period of ambiguity, of not knowing which path is best, is where the real lawyering lives.

What to do instead

None of this means stop using AI. It means stop using AI to skip the hard part that matters.

Before you ever ask for a draft, ask for the map. Describe the matter or document you are working on, then ask the AI for three fundamentally different strategic framings for the problem. For each framing, request the strongest argument in its favor and its most serious vulnerability. Then ask which framing best fits the

client's goals, the audience, or the procedural posture. Close with a clear instruction: *Do not write a draft yet.*

That last instruction is the key. It keeps you in the driver's seat during the phase that matters most. You are using AI to expand the possibilities *before* you prune them, not after. And, most importantly, it gives you the opportunity to think for yourself about other important possibilities and add them in.

In the terms used by Kahneman and Tversky, use AI to fuel System 2, not to hand the controls to System 1. Let the machine generate options, and you exercise judgment.

For lawyers, the ability to see *what is not there* is the whole game.

Do not let the first draft blind you to it.

*Tom Martin is CEO & Founder of LawDroid, Adjunct Professor at Suffolk University Law School, and author of the forthcoming **AI with Purpose: A Strategic Blueprint for Legal Transformation (Globe Law and Business)**. He is "The AI Law Professor" and writes this eponymous column for the Thomson Reuters Institute.*

AGENTIC AI AI & FUTURE TECHNOLOGIES AI IN THE LEGAL INDUSTRY AI LAW PROFESSOR AI LITERACY
CAREER ADVANCEMENT & TRAINING CORPORATE LAW DEPARTMENTS CORPORATES GENERATIVE AI
LEGAL EDUCATION LEGAL TECHNOLOGY TECH ADOPTION TECHNOLOGY TRAINING

[← Back to blog](#)

Solutions



77%

expect **agentic AI** to
be central to their
workflow by 2030

2026 AI in Professional Service Report

Discover where GenAI and agentic AI are gaining traction in the professional services sector, how expectations and business models are shifting, and where leaders need to prepare as AI becomes an essential pillar of professional work.

Featured event

SEP 17, 2026

The 2026 Future of AI & Technology Forum

The 2026 Future of AI & Technology Forum is built around real conversations, use cases, and decision-making moments facing professional ...

Event details

Related posts



Agentic AI following GenAI's growth trajectory in legal, but with unique oversight challenges, new report shows

9 Apr 2026 · 7 minute read



Relationship-building and AI fluency key to closing visibility gap, new report shows

6 Apr 2026 · 5 minute read



Honing legal judgment: The AI era requires changes to how lawyers are trained during and after law school

2 Apr 2026 · 8 minute read

ABOUT THOMSON REUTERS

PRODUCTS & SERVICES

LEARN MORE

CONTACTS

CONNECT WITH US